

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA**

**Tentative Ruling**

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**2026CUPP065669: MARITZA YVETTE VALENCIA, AS SUCCESSOR IN INTEREST  
TO GUSTA VO VALENCIA CHAVEZ, et al. vs WONDERFUL CITRUS LLC, et al.**

**09/22/2026 in Department 21**

**Demurrer for Sandra Monroy and all Wonderful Citrus Defendants**

**Tentative Rulings.** Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to [courtroom21@ventura.courts.ca.gov](mailto:courtroom21@ventura.courts.ca.gov) before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.) If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**Motions:**

- (1) Defendants Wonderful Citrus LLC, The Wonderful Company LLC, Wonderful Citrus Ventures LLC, Wonderful Citrus II LLC, Wonderful Citrus III LLC, Wonderful Citrus Holdings LLC, Wonderful Citrus Packing LLC (collectively “Wonderful Defendants”), and Sandra Monroy’s (“Monroy”) (collectively “Defendants”) Demurrer to Plaintiff’s Complaint;
- (2) Wonderful Defendants and Monroy’s Motion to Strike

**Tentative Ruling:**

**I. Demurrer:**

Workers Compensation Exclusivity

**2026CUPP065669: MARITZA YVETTE VALENCIA, AS SUCCESSOR IN INTEREST TO GUSTA VO VALENCIA CHAVEZ, et al. vs WONDERFUL CITRUS LLC, et al.**

Plaintiffs in their opposition agree the workers' compensation exclusive remedy applies to Wonderful Citrus II only. Plaintiffs admit this entity was decedent's employer. As such, the Court will DISMISS without prejudice, Defendant Wonderful Citrus II.

As to the remaining defendants, the demurrer is OVERRULED on the grounds that the workers' compensation is the exclusive remedy. Based on the face of the complaint, the facts sufficiently allege that as the owner, occupier, manager, or controller of the premises these Defendants had a duty to ensure the safety of the premises by inspecting for dangerous conditions such as unstable soil and dangerous terrain, and warning of such dangerous conditions, yet they failed to do so. These facts are sufficient to overcome a demurrer at the pleading stage on these grounds.

First Cause of action for general negligence

The demurrer is SUSTAINED as to this cause of action based on uncertainty and failure to state facts sufficient to allege a cause of action, for the same reasons the court sustained Lawrence Tractor's demurrer. The block pleading makes it difficult to ascertain what allegations are plead as against each defendant. The facts do not identify which defendants owned, managed, maintained, operated, or supervised the premises or tractor products. As alleged, plaintiff fails to identify what duties each defendant owed to plaintiff and how each defendant breached any such duty. The demurrer to the 1<sup>st</sup> cause of action is SUSTAINED with leave to amend.

Second Cause of Action for Premises Liability

The demurrer based on uncertainty is SUSTAINED as to Defendant Sandra Monroy and OVERRULED as to the remaining Wonderful Defendants. Due to the blocked pleading Defendants cannot identify what allegations are alleged against the individual defendant Sandra Monroy as compared to the other Wonderful Defendant entities. As to the Wonderful Defendants, this cause of action is only alleged against the Wonderful Defendants and Monroy, (not Lawrence Tractor or Deere). The complaint sufficiently indicates Defendants are the owners, lessors, occupiers, managers of the premises and controlled the premises at the time of the injury. This is sufficient to overcome the block pleading issues that affect the first cause of action. There is no uncertainty as to the Wonderful Defendants that cannot be clarified through discovery. It follows that the demurrer for uncertainty is OVERRULED as to the Wonderful Defendants and SUSTAINED as to Defendant Monroy, with leave to amend.

As to the demurrer for failure to state sufficient facts, the complaint alleges all such defendants owned, leased, occupied, used, managed, and/or controlled the premises, and that they were negligent in such capacities as they knew or should have known the premises lacked protective barriers, warnings and signage. (Comp. ¶¶ 34 - 36.) The complaint contains a photograph of the terrain that is alleged to have no barrier, warning, or signage (Comp. ¶ 18.) Additionally, the Complaint alleges that because of this failure, Plaintiff was harmed. (Comp. ¶¶ 37-39.) These facts are sufficiently plead. The demurrer to the second cause of action for failure to state sufficient facts as to the Wonderful Defendants is OVERRULED. However, there are no facts alleged as to any action or inaction by Defendant Monroy. The demurrer to this cause of action by Monroy is SUSTAINED with leave to amend.

**2026CUPP065669: MARITZA YVETTE VALENCIA, AS SUCCESSOR IN INTEREST TO GUSTA VO VALENCIA CHAVEZ, et al. vs WONDERFUL CITRUS LLC, et al.**

*Third Cause of Action for Negligent Undertaking*

The demurrer based on uncertainty is OVERRULED as to the Wonderful Defendants and SUSTAINED as to Defendant Monroy, with leave to amend.

The demurrer based on failure to state facts is SUSTAINED with leave to amend as to the Wonderful Defendants and Monroy. Defendants correctly point out that the complaint fails to identify what acts or services were rendered by the named Defendants (who are presumably not the decedent's employer), or how the Defendants failed to exercise reasonable care in rendering or failing to render such services. Stating that Defendant landowners/occupiers/lessors/managers undertook to create and administer safety policies for the inspection and prevention of dangerous conditions and "the performance of safety training and/or warnings in connection with the Tractor Products and the Premise" is too general and mere conclusory language.

*Fourth Cause of Action for Strict Liability – Design Defect; Fifth Cause of Action for Strict Liability – Manufacturing Defect; Sixth Cause of Action for Strict Products Liability – Failure to Warn; and Seventh Cause of Action for Negligent Failure to Recall/Retrofit*

As with the first cause of action, the fourth, fifth, sixth and seventh causes of action are alleged against all defendants and fail to identify which defendant supposedly manufactured, sold or were involved with the production, marketing, or distribution of the "Tractor Products". The demurrer based on uncertainty as to the fourth, fifth, sixth and seventh causes of action are SUSTAINED, with leave to amend.

Further, all four causes of action fail to state any facts sufficient to allege the Wonderful Defendants or Defendant Monroy manufactured, distributed, or sold the allegedly defective product. Although it seems unlikely that Plaintiff will be able to allege these demurring defendants manufactured, distributed, or sold the product, since Plaintiff has not had the opportunity to amend to attempt to allege such facts, the Court will grant leave to amend.

In sum, the demurrer to the fourth, fifth, sixth, and seventh causes of action for uncertainty and for failing to state facts sufficient to support a cause of action are SUSTAINED with leave to amend.

*Eighth Cause of Action for Survival Action*

Here, the Demurrer states that Defendants are demurring to this cause of action based on the grounds of failure to state facts sufficient to constitute a cause of action against the moving Defendants. However, the points and authorities fails to address this argument. The only ground raised in the moving papers as to the eighth cause of action is uncertainty.

The demurrer is OVERRULED on the grounds of uncertainty as to the Wonderful Defendants and SUSTAINED as to Defendant Monroy. Based on the rulings noted above, the Court has sustained the demurrer as to all causes of action one through seven as to Defendant Monroy. Thus, the complaint is uncertain as to any basis for a survival action against Monroy.

**2026CUPP065669: MARITZA YVETTE VALENCIA, AS SUCCESSOR IN INTEREST  
TO GUSTA VO VALENCIA CHAVEZ, et al. vs WONDERFUL CITRUS LLC, et al.**

As to the Wonderful Defendants, the second cause of action for premises liability is sufficiently plead. Therefore, the demurrer to the eighth cause of action is OVERRULED as to these Defendants.

**II. Motion to Strike**

The Wonderful Defendants and Defendant Monroy move to strike various pain and suffering damages, medical expenses, and punitive damages from the complaint.

In light of the Court's ruling on the Demurrer, the motion to strike is GRANTED, with leave to amend, as to Defendant Monroy. As to the Wonderful Defendants, the motion to strike is GRANTED with leave to amend as to future medical expenses, economic pain and suffering, and punitive damages (Complaint page 18, lines 10, 13 and 14).

The motion to strike is DENIED as to the prayer for non-economic pain and suffering damages (Complaint page 18, line 8).

As to all remaining portions of the complaint the motion to strike is moot.

Plaintiff shall file a first amended complaint no later than 12/14/26 (90 days from this Court's 9/15/26 ruling on Defendant Deere & Company's motion to strike).

Counsel for Defendants is to give notice within two (2) court days.